

Calendar Line 1

Case Name: *Russell Filice et al. v Essex Property Trust, Inc. et al.*

Case No.: 24CV434244

Plaintiffs Airport II Property Management LLC, San Jose Office Plaza, LLC, Russell C. Filice, and Linda Ann Filice move to compel Defendant Essex Property Trust, Inc. to provide further verified responses to Special Interrogatories, Set One, Nos. 1-35, and request monetary sanctions.

BACKGROUND

Plaintiffs own commercial property adjacent to the Century Center Towers apartment complex at 1729 N. First Street in San Jose, which is owned and managed by Defendant Essex Property Trust, Inc.. Plaintiffs allege a sustained course of trespass, nuisance, harassment, and physical assault against them and their property by tenants of the Towers, and they have named those tenants as Doe defendants alongside Essex. Plaintiffs represent that they located and photographed individuals on and around the subject property and personally served them as Doe defendants; they contend that the identities of those individuals lie uniquely with Essex, which allegedly maintains the lease records, tenant rosters, and access registrations for the building.

LEGAL FRAMEWORK

Code of Civil Procedure section 2030.300, subdivision (a), authorizes a party to move for an order compelling further responses to interrogatories if the propounding party deems an answer to be evasive or incomplete, an exercise of the option to produce documents is unwarranted or the required specification is inadequate, or an objection is without merit or too general.

Interrogatory responses must be as complete and straightforward as the information reasonably available to the responding party permits, and the responding party must make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations. Plaintiffs cite Code of Civil Procedure section 2030.220 for these propositions. Essex does not dispute these statutory requirements.

The scope of discovery extends to any matter, not privileged, that is relevant to the subject matter involved in the pending action or that appears reasonably calculated to lead to the discovery of admissible evidence. Plaintiffs cite. Code of Civil Procedure section 2017.010. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter.

Where a privacy objection is raised, the party asserting a privacy right must establish a legally protected privacy interest, a reasonable expectation of privacy in the given circumstances, and a serious invasion of privacy. If these elements are met, the court must balance the privacy interest against the need for discovery. Both parties cite *Hill v. Nat'l Collegiate Athletic Assn.*, 7 Cal. 4th 1 (1994) for this framework. Essex also cites *Cnty. of Los Angeles v. Los Angeles Cnty. Emp. Relations Comm'n*, 56 Cal. 4th 905, 927 (2013), for the proposition that home contact information is generally considered private.

ANALYSIS

I. Verification Requirement

Essex's responses are unverified. Interrogatory responses must be signed under oath by the responding party unless the responses contain only objections. Here, Essex provided substantive responses beyond mere objections—specifically, statements that it is not able to identify persons and that it conducted a diligent search finding no documents. These are factual assertions that require verification. Essex's failure to verify its responses is a significant defect.

II. Interrogatories Nos. 1-24 (Identification of Doe Defendants)

These interrogatories seek the identification of individuals depicted in photographs attached as exhibits, corresponding to Does 1-24 who have been personally served as defendants. Plaintiffs contend that "16 of the certified proofs of service of the 24 Doe Defendants provides that not only were those defendants served on Plaintiffs' property while trespassing, but also that those persons were residents of Essex's building." Reply in Support in Response to Separate Statement 7:23-27 Essex does not dispute this factual assertion.

The Privacy Analysis

Essex contends that the privacy interests of its tenants outweigh Plaintiffs' discovery needs and that "There are 376 units at the Towers (Foscalina Decl., 4) whose tenants would have their legally protected home contact information intruded upon due to the acts of, *arguendo*, 24 tenants." Mem. in Opp'n to Mot. to Compel

The privacy argument fails for several reasons. First, these interrogatories do not seek a broad tenant roster but rather the identification of specific individuals who have been photographed, named as defendants, and personally served with process. These are not uninvolved third parties; they are parties to this litigation. The privacy interest of a defendant in concealing their identity from their adversary in ongoing litigation is substantially diminished.

Second, Plaintiffs contend that Essex concedes 16 of the 24 individuals are residents of the Essex property. Essex possesses tenant records that would allow it to identify these individuals from the photographs. For the remaining individuals, if Essex lacks knowledge because they are not tenants, Essex should so state after a reasonable inquiry.

Third, Plaintiffs represent that they offered to stipulate to a protective order limiting use and dissemination of the information to this litigation. Essex does not dispute this offer but contends that a protective order does not address the privacy concerns of tenants who did not participate in the alleged events. However, the interrogatories do not seek information about uninvolved tenants; they seek identification of specific photographed individuals corresponding to Doe defendants who have been served.

Fourth, Plaintiffs cite *Williams v. Superior Court of L. A. Cnty.*, 3 Cal. 5th 531, 541-542 (2017), for the proposition that the party propounding interrogatories is presumptively entitled to a response and that the objecting party carries the burden of demonstrating why statutory or public policy considerations clearly prohibit disclosure. Plaintiffs also cite *Pioneer Electronics*

(USA), Inc. v. Superior Court, 40 Cal. 4th 360, 370-374 (2007); Puerto v. Superior Court, 158 Cal. App. 4th 1242, 1249-1252 (2008), for the proposition that privacy interests in contact information are ordinarily addressed through reasonable protective measures rather than wholesale refusal. Essex cites Williams and Pioneer but argues they are distinguishable because those cases involved representative actions to include employees and purchasers as plaintiffs, not attempts to obtain tenant rosters to sue tenants.

The distinction Essex draws is not persuasive. While the procedural context differs, the underlying principle remains: privacy interests in contact information can be adequately protected through reasonable safeguards rather than complete refusal. Here, where the individuals are already defendants who have been served, the need for their identification is even more compelling than in the class action context.

Failure to Conduct Reasonable Inquiry

Plaintiffs contend that "Essex's responses to Nos. 1-27 do not claim a diligent search or inability to respond after inquiry; they are pure objections." Reply in Supp. in Resp. to Sep. Statement 8:18-23 Plaintiffs argue that Code of Civil Procedure section 2030.220, subdivision (c), requires a reasonable and good faith effort to obtain information by inquiry to employees, agents, or others with knowledge, and that Essex made no such showing. Essex's responses state that it is not able to identify the persons but do not indicate what, if any, inquiry was made. Essex has not claimed it lacks the records; rather, it has refused to consult them based on privacy objections.

Ruling on Nos. 1-24: The motion is GRANTED. Essex shall provide further verified responses identifying each person depicted in the photographs corresponding to Does 1-24, based on a reasonable inquiry to its records and personnel. To the extent Essex lacks knowledge after such inquiry as to any specific individual, it shall so state in its verified response. The information shall be subject to a protective order limiting use and dissemination to this litigation.

III. Interrogatory No. 25 (Tenant List)

This interrogatory seeks identification of all tenants during a specified timeframe. The privacy concerns are stronger for a complete tenant list than for identification of specific party-defendants. However, Plaintiffs allege ongoing trespass, nuisance, harassment, and assault by tenants of the Essex property, and the tenant list is relevant to identifying potential witnesses and additional parties. Plaintiffs represent that they offered a protective order.

Essex argues that providing a complete tenant list would intrude upon the privacy of the overwhelming majority of tenants who did not participate in the alleged events. This concern has force. However, Essex has not explained why a protective order with appropriate limitations would be inadequate. Plaintiffs' need for information about who resided at the property during the relevant period is substantial, as Essex is the only source for this information.

Ruling on No. 25: The motion is GRANTED. Essex shall provide a verified response identifying tenants during the relevant timeframe, subject to a stipulated protective order to be

agreed upon by the parties within 20 days. The protective order shall address the concerns raised by Essex regarding use, dissemination, and protection of non-party tenant information. If the parties cannot agree on terms, either party may notice a motion for a protective order.

IV. Interrogatory No. 26 (Essex Employees)

This interrogatory seeks identification of Essex employees who worked at or managed the property. Essex's employees are potential witnesses with knowledge of property management, tenant conduct, complaints, and the incidents alleged. The identification of employees with relevant knowledge falls within the scope of discovery. While employees may have privacy interests in their contact information, such interests are diminished for work-related matters and can be addressed through protective measures.

Ruling on No. 26: The motion is GRANTED. Essex shall provide a verified response identifying employees who worked at or managed the property at 1729 N. First Street during the relevant period, including at minimum their names and work contact information, subject to the protective order to be negotiated for No. 25.

V. Interrogatory No. 27 (Security Systems)

Essex does not address this interrogatory in its opposition. Plaintiffs contend that any argument as to No. 27 is therefore forfeited. Essex has not explained why information about security devices or surveillance systems employed at its own property would be protected by privacy or any other privilege.

Ruling on No. 27: The motion is GRANTED. Essex shall provide a verified response describing its security devices or surveillance systems employed at the property during the relevant period.

VI. Interrogatories Nos. 28-31 (Documents)

These interrogatories seek identification or description of documents. Essex objected and stated that it conducted a diligent search and has no responsive documents.

Several problems affect these responses. First, they are not verified. Second, Essex's responses are conclusory and do not explain what search was conducted, who performed it, or what sources were examined.

Third, as to Interrogatory No. 28 regarding documents recording pet ownership, Plaintiffs point out that the First Amended Complaint alleges Essex charges a pet fee, and Plaintiffs request judicial notice that this fact is confirmed by Essex's publicly available website. Essex necessarily maintains records indicating which tenants have pets for purposes of assessing fees. Essex responds that the interrogatory is an improper attempt to identify and sue all pet owners. That objection does not justify refusing to describe what documents exist or stating that no documents exist after a diligent search.

Fourth, as to Interrogatory No. 29 regarding rules about tenant access to Plaintiffs' property, Essex argues it has no duty to instruct tenants. Plaintiffs respond that the interrogatory asks

whether documents exist regarding rules or policies, not whether Essex has a legal duty. If such documents do not exist, a verified response so stating is required.

Fifth, as to Interrogatories Nos. 30 and 31 regarding complaints and tenant communications, Plaintiffs question whether a multi-hundred-unit residential property maintains no complaint records, incident reports, or communications regarding misconduct or litigation. At minimum, a verified response describing the search performed is required.

Plaintiffs also argue that if Essex intends to rely on Code of Civil Procedure section 2030.230 to produce documents from which information can be ascertained, it must specify the documents with reasonable particularity and afford an opportunity to inspect them.

Ruling on Nos. 28-31: The motion is GRANTED. Essex shall provide further verified responses describing what records were searched, by whom, and the results. If responsive documents exist, Essex shall either identify them with reasonable particularity per Code of Civil Procedure section 2030.230 or describe them in the response. If no responsive documents exist after a diligent search, Essex shall provide a verified response describing the scope and manner of the search performed.

VII. Interrogatories Nos. 32-34 (Corporate Relationships)

These interrogatories seek descriptions of the relationships among Essex Property Trust, Inc., New Century Towers, LLC, and Essex Management Corporation. Essex objects that the term relationship is vague and that the information is irrelevant and privileged.

The vagueness objection lacks merit. In this context, relationship plainly calls for identification of legal, operational, and financial connections among related entities, including ownership interests, management agreements, shared officers or control, and agency relationships.

The relevance objection also fails. Plaintiffs point out that the First Amended Complaint names all three entities and alleges alter ego, agency, and related theories. The relationships among these entities go to ownership, management responsibility, and control over the property and tenants.

Essex's privilege objection is insufficient. Essex does not articulate which specific privilege applies or how it would protect factual information about corporate structure, ownership, and management agreements. If Essex believes specific information is privileged, it must provide a verified response as to non-privileged information and assert privilege as to specific matters with sufficient detail to permit evaluation.

Plaintiffs cite Code of Civil Procedure section 2030.010, subdivision (b), as authorizing contention interrogatories seeking facts, witnesses, and writings on which a contention is based. Plaintiffs also cite *Rifkind v. Superior Court*, 22 Cal. App. 4th 1255, 1261 (1994), for the proposition that an interrogatory is not objectionable merely because it calls for application of law to fact. Essex does not dispute these authorities.

Ruling on Nos. 32-34: The motion is GRANTED. Essex shall provide further verified responses describing the relationships among Essex Property Trust, Inc., New Century Towers,

LLC, and Essex Management Corporation, including any ownership interests, management or agency agreements, shared officers or directors, and operational control. If Essex contends specific information is privileged, it shall respond as to all non-privileged information and provide a privilege log identifying any withheld information with sufficient specificity to permit evaluation of the privilege claim.

VIII. Interrogatory No. 35 (Facts Supporting Contentions)

This interrogatory seeks facts supporting Essex's contention that New Century Towers, LLC and Essex Management Corporation should be added as party defendants. Essex objects that Plaintiffs have not shown Essex made such a contention.

A contention interrogatory may properly ask whether a party makes a certain contention and, if so, the factual basis for it. If Essex does not contend that these entities should be added as defendants, it should so state. If Essex does make such a contention or takes a position regarding which entities are or are not responsible for the property and alleged conduct, it must provide the factual basis.

Ruling on No. 35: The motion is GRANTED. Essex shall provide a verified response stating whether it contends that New Century Towers, LLC and Essex Management Corporation should be added as defendants and, if so, the factual basis for that contention. If Essex does not make such a contention, it shall state what facts support its position regarding which entities are responsible for the property, management, and the alleged conduct.

MONETARY SANCTIONS

Code of Civil Procedure section 2030.300, subdivision (d), mandates an award of sanctions against a party who unsuccessfully opposes a motion to compel further responses, unless the court finds that the party acted with substantial justification or that other circumstances make sanctions unjust.

Essex has not acted with substantial justification. Essex served unverified responses consisting of objections and conclusory statements. " On August 1, 2025, defense counsel, after conferring with Essex's general counsel, informed me that Essex was 'really hesitant to hand out names and identity information about its tenants' and that Plaintiffs 'would need to get a court order to compel substantive responses.'" Decl. of A. Peter Rausch When Plaintiffs proposed a protective order to address privacy concerns, Essex did not engage meaningfully. Essex has provided no verified evidence that it conducted any inquiry to its records or personnel. While Essex's privacy arguments were raised in good faith, they do not amount to substantial justification for refusing to conduct the statutorily required inquiry or to provide verified responses.

Plaintiffs seek sanctions of not less than \$8,500

The court finds sanctions are warranted, but a modest reduction is appropriate. While Essex's position lacked substantial justification, some of Essex's privacy concerns were not frivolous even though ultimately unpersuasive. The court awards sanctions in the reduced amount of \$5,000.

Sanctions Award: Monetary sanctions are imposed against Essex Property Trust, Inc. and its counsel of record, jointly and severally, in the amount of \$5,000, payable to Plaintiffs within 30 days of the date of this order.

DISPOSITION

The motion to compel further responses to Special Interrogatories, Set One, Nos. 1-35, is GRANTED.

Defendant Essex Property Trust, Inc. shall serve verified further responses, without objection except for privilege specifically identified and logged, within 30 days of the date of this order.

The parties shall meet and confer within 20 days regarding a stipulated protective order governing the dissemination and use of contact information and tenant/employee identifying information. If the parties cannot reach agreement, either party may notice a motion for a protective order.

Monetary sanctions are awarded to Plaintiffs against Defendant Essex Property Trust, Inc. and its counsel of record, jointly and severally, in the amount of \$5,000, payable within 30 days of the date of this order.

Plaintiff shall prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

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Calendar Line 2

Case Name: *Scott Johnson v Jia Lee et al.*

Case No.: 24CV443089

BACKGROUND

This is a disability-access action alleging violations of the Americans with Disabilities Act and California's Unruh Civil Rights Act. The Complaint alleges disability-access violations arising from three visits to Dana Street Roasting Company on January 24, 25, and 26, 2023. The alleged accessibility conditions concern the entrance door hardware, entrance slope, sales counter, and dining tables.

Plaintiff moves for a protective order based on the scope and number of discovery requests propounded by Defendants.

The discovery history is as follows:

Set One: Defendants served initial discovery consisting of 13 Requests for Admission, 10 Requests for Production, and Form Interrogatories, to which Plaintiff responded.

Deposition: Defendants took Plaintiff's deposition on September 12, 2025.

Set Two: Following the case management conference, Defendants served Set Two, consisting of 15 Requests for Admission, 15 Special Interrogatories, 15 Requests for Production, and Form Interrogatories, to which Plaintiff responded.

Set Three: On February 20, 2026, Defendants served Set Three discovery, which included a declaration stating that additional discovery in excess of the statutory limit was warranted. Set Three contains 97 Requests for Admission, 21 Special Interrogatories, 19 Requests for Production, and Form Interrogatories.

The parties met and conferred on March 18, 2026. They did not reach agreement concerning withdrawal or narrowing of the discovery, but stipulated to stay Plaintiff's responses pending resolution of this motion.

LEGAL STANDARD**A. Requests for Admission in Excess of 35**

Code of Civil Procedure section 2033.030 limits a party to 35 requests for admission that do not concern the genuineness of documents, unless the requirements for additional discovery are satisfied. Section 2033.040, subdivision (a), permits a party to request a greater number of admissions when the greater number is warranted by "the complexity or the quantity of the existing and potential issues in the particular case." A party propounding more than 35 requests must provide the declaration required by section 2033.050.

The 35-request limit is therefore not an absolute ceiling. Where the responding party seeks a protective order on the ground that the number of requests is unwarranted, however, “the propounding party shall have the burden of justifying the number of requests for admission.” (Code Civ. Proc., § 2033.040, subd. (b).)

B. Protective Orders

Code of Civil Procedure section 2033.080, subdivision (a), permits a responding party to move promptly for a protective order after requests for admission have been served. On a showing of good cause, the Court may make any order that justice requires to protect a party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (§ 2033.080, subd. (b).)

The statute expressly authorizes the Court to order that an entire set of admission requests, or particular requests within the set, need not be answered. (§ 2033.080, subd. (b)(1).) It also expressly authorizes the Court to determine that the number of requests is unwarranted notwithstanding the representations made in the supporting declaration. (§ 2033.080, subd. (b)(2).)

C. Meet and Confer

A motion for a protective order concerning Requests for Admission must be accompanied by a meet-and-confer declaration under Code of Civil Procedure section 2016.040. (§ 2033.080, subd. (a).) Section 2016.040 requires a reasonable and good-faith attempt to resolve the issues informally.

ANALYSIS

A. Meet and Confer

The parties dispute the adequacy of their meet-and-confer efforts.

Defendants contend that, on March 18, 2026, defense counsel invited Plaintiff’s counsel to identify particular requests that Plaintiff believed were irrelevant, cumulative, oppressive, or otherwise objectionable so that the parties could determine whether individual requests could be narrowed, clarified, or withdrawn. Defendants contend that Plaintiff did not identify particular requests, propose a numerical compromise, or otherwise engage in request-by-request discussion.

Plaintiff responds that defense counsel did not propose the specific engagement now described in the opposition. According to Plaintiff, Defendants offered to withdraw requests they viewed as duplicative or irrelevant, but the parties were unable to agree on the scope of relevant discovery. Plaintiff took the position that Set Three, as a whole, exceeded the permissible scope of discovery.

The Court finds the meet-and-confer requirement satisfied. The parties communicated regarding the disputed discovery and were unable to resolve their disagreement. Plaintiff’s position that the entire set of 97 additional Requests for Admission was unwarranted presented

a legal and scope-of-discovery issue that did not necessarily require counsel to negotiate each individual request before seeking judicial intervention.

B. Defendants Have Not Justified 97 Additional Requests for Admission

The central issue is whether Defendants have met their burden under section 2033.040, subdivision (b), of demonstrating that the 97 additional Requests for Admission are warranted by the complexity or quantity of the existing and potential issues in this action.

They have not.

1. Nature of the Action

The action concerns alleged accessibility barriers at a single business arising from three visits over three consecutive days. The alleged barriers involve the entrance door hardware, entrance slope, sales counter, and dining tables.

The claims may present factual issues concerning Plaintiff's experiences at the premises, the alleged barriers, the circumstances of Plaintiff's visits, and the relief to which Plaintiff may be entitled. Those issues do not, however, establish that the case is sufficiently complex or involves such a quantity of issues as to warrant 97 additional Requests for Admission after substantial discovery already has occurred.

2. Scope of Discovery Already Conducted

The number of discovery requests already propounded is substantial. Defendants previously served 28 Requests for Admission in Set One and Set Two, together with interrogatories, requests for production, and other discovery. Set Three adds 97 Requests for Admission, 21 Special Interrogatories, and 19 Requests for Production.

Defendants also took Plaintiff's deposition on September 12, 2025. The deposition was completed by Defendants rather than terminated because of expiration of the allotted time, and the record before the Court does not establish that additional deposition time was necessary or that Defendants were unable to obtain material information through the deposition.

The record therefore demonstrates that Defendants have had substantial opportunity to obtain information concerning Plaintiff's claims.

3. Repetition and Overlap

Plaintiff contends that many of the matters addressed by Set Three were already explored through the deposition and prior discovery. Plaintiff also contends that he produced substantial documentary discovery, including photographs, receipts, and information concerning other establishments.

The Court does not find that every Set Three request is necessarily duplicative or irrelevant. Defendants are entitled to conduct reasonable discovery concerning facts Plaintiff has placed in issue. But the question under section 2033.040 is not whether some of the additional requests

may concern discoverable matters. It is whether the number of requests—97 additional RFAs after 28 prior RFAs—is warranted by the complexity or quantity of the issues in this particular case.

On this record, Defendants have not made that showing.

4. Intent to Return and Deterrence

Defendants contend that Plaintiff's reasons for visiting the business, his experience during the visits, whether he was deterred from returning, and whether he presently intends to return are relevant to his claims and requested relief.

The Court agrees that these subjects are not categorically irrelevant. In particular, the relevance of deterrence depends in part on the statutory damages theory being pursued, and the scope of prospective injunctive relief may implicate whether Plaintiff faces a likelihood of future injury.

The existence of some relevant discovery concerning these subjects, however, does not establish that 97 additional Requests for Admission are warranted. The proper inquiry remains whether the overall number of requests is justified by the complexity or quantity of the issues. Defendants have not demonstrated that the information sought could not reasonably be obtained through more focused discovery.

5. Criminal Conviction

Set Three includes 26 Requests for Admission, Nos. 72 through 97, concerning Plaintiff's federal criminal conviction and related matters.

The fact of a prior conviction may be relevant for impeachment, subject to applicable evidentiary limitations. Plaintiff has already acknowledged the conviction and discussed it at deposition.

The Court therefore finds that, although some limited inquiry concerning the conviction may be permissible, the record does not establish why 26 additional Requests for Admission concerning the conviction and related matters are warranted in this action. Discovery concerning the circumstances of the conviction, the terms of the judgment or plea agreement, Plaintiff's prior income, or other collateral matters must still satisfy the applicable relevance and proportionality requirements.

6. Plaintiff's Litigation History and Practices

Set Three also includes substantial inquiry concerning Plaintiff's litigation practices, methods of selecting businesses, and alleged motivations for pursuing accessibility claims.

Some discovery concerning Plaintiff's conduct in connection with the subject visits and the claims asserted in this action may be relevant. The Court does not find, however, that the breadth of inquiry reflected in Set Three is justified merely because Plaintiff has filed other accessibility actions or because Defendants seek to challenge his motives.

The question is not whether Defendants may investigate Plaintiff's claims. They may. The question is whether the number and scope of these additional Requests for Admission are warranted under section 2033.040. On this record, they are not.

7. Defendants' Supporting Declaration

Defendants submitted the declaration required by section 2033.050. That declaration permits Defendants to seek more than 35 Requests for Admission; it does not itself establish that the requested number is warranted.

Section 2033.040 places the burden on Defendants to justify the number of requests once Plaintiff seeks a protective order on the ground that the number is unwarranted. The Court has considered Defendants' explanation for the additional discovery but concludes that it does not demonstrate that 97 additional Requests for Admission are warranted by the complexity or quantity of the issues in this case.

C. The Court Will Grant Protection From Set Three in Its Entirety

The Court recognizes that Defendants are entitled to test Plaintiff's claims and to obtain relevant information. The ruling is not based on a determination that all 97 requests are individually irrelevant.

Rather, considering the nature of the action, the prior discovery, the completed deposition, the subject matter of the requests, and the absence of a sufficient showing that 97 additional Requests for Admission are warranted by the complexity or quantity of the issues, the Court finds that the number of requests is unwarranted.

Accordingly, pursuant to Code of Civil Procedure section 2033.080, subdivision (b), Plaintiff is not required to respond to Requests for Admission, Set Three, Nos. 1 through 97.

This ruling does not preclude Defendants from pursuing appropriate, focused discovery concerning genuinely disputed matters that have not already been adequately explored.

RULING ON SANCTIONS

A. Plaintiff's Request for Sanctions

Plaintiff seeks \$6,050 in sanctions under Code of Civil Procedure section 2033.080, subdivision (d), based on 7.0 hours of attorney time at \$750 per hour and 4.0 hours of paralegal time at \$200 per hour.

Section 2033.080, subdivision (d), provides that the Court shall impose a monetary sanction against a party, person, or attorney who unsuccessfully makes or opposes a motion for protective order unless the Court finds that the party, person, or attorney acted with substantial justification or that other circumstances make imposition of the sanction unjust.

The Court has granted Plaintiff's motion. Nevertheless, the Court finds that Defendants acted with substantial justification in opposing the motion. The dispute involved legitimate issues

concerning the scope of Requests for Admission, the application of the statutory limit, and the relevance of several categories of information. Defendants advanced colorable arguments concerning the relevance of Plaintiff's experiences, intent to return, deterrence, and litigation history.

Although the Court ultimately concludes that Defendants did not justify the number of additional Requests for Admission, the opposition was substantially justified.

Plaintiff's request for monetary sanctions is therefore DENIED.

B. Defendants' Request for Sanctions

Defendants seek sanctions against Plaintiff based on Plaintiff's refusal to respond to the disputed Requests for Admission and alleged failure to provide information concerning matters placed in controversy.

Because the Court grants Plaintiff's motion for a protective order and determines that Plaintiff is not required to respond to Requests for Admission, Set Three, Nos. 1 through 97, Defendants' request for sanctions based on Plaintiff's failure to respond to those requests is DENIED.

DISPOSITION

Plaintiff's Motion for Protective Order is GRANTED.

Plaintiff is not required to respond to Defendants' Requests for Admission, Set Three, Nos. 1 through 97.

Plaintiff's request for monetary sanctions is DENIED.

Defendants' request for monetary sanctions is DENIED.

Plaintiff shall prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

Calendar Line 3 - 4

Case Name: *Sarah Wager-Ratinoff, et al. v. Marriott International, Inc., et al.*

Case No.: 25CV460908

Plaintiffs Sarah Wager-Ratinoff, Jessica Ratinoff, and Hailey Ratinoff, a minor through Sarah Wager-Ratinoff as guardian ad litem, (“Plaintiffs”) allege Defendants Marriott International, Inc., Lotus Hotels – Campbell LLC., Towneplace Suites San Jose Campbell (“Towneplace Suites”), Bhupen Amin, Lisa Doe (“Defendants”), and Does 1 through 20, inclusive, provided Plaintiffs with a room without air conditioning and infested with bedbugs. Presently before the court is Defendants’ demurrer (“Demurrer”) to Plaintiff’s Complaint (“Complaint”) and Defendant’s motion to strike (“Motion to Strike”) the Complaint’s prayer for punitive damages and attorneys’ fees.

I. BACKGROUND

On or about March 14, 2023, a major storm caused a power outage at the residence of Plaintiff Sarah Wager-Ratinoff and her two daughters, Plaintiff Jessica Ratinoff and Plaintiff Hailey Ratinoff. (Complaint, ¶ 16.) Due to the power outage, Plaintiffs decided to check into a room at Towneplace Suites. (*Ibid.*) Upon entering their room, Plaintiffs discovered that the air conditioning unit was inoperable. (Complaint, ¶ 17.) Plaintiff Sarah Wager-Ratinoff asked an employee at the front desk for a room change but was informed that no other rooms were available. (Complaint, ¶ 18.) After Plaintiff’s request, the front desk disclosed that “the air conditioning unit was blown in Plaintiffs’ room, Room 218, as well as five other rooms, and that maintenance has not been able to fix it.” (Complaint, ¶ 19.) The front desk staff also informed Plaintiff Sarah Wager-Ratinoff that a portable air conditioning unit would be brought to the room, but this never occurred. (*Ibid.*) The following morning, Plaintiffs discovered a bed bug infestation on the bed that Plaintiff Jessica Ratinoff and Plaintiff Hailey Ratinoff slept in, and “all Plaintiffs saw that they had been bitten by those bed bugs.” (Complaint, ¶ 22.) Plaintiffs checked out of the hotel and were unable to wash their clothes or take remedial measures to prevent further infestation due to the ongoing power outage. (Complaint, ¶ 24.)

On or about March 17, 2023, Plaintiff Jessica Ratinoff and Plaintiff Hailey Ratinoff fell ill with flu-like symptoms, including a sore throat, runny nose, and cough. (Complaint, ¶ 31.) Plaintiffs suffered from severe itchiness and difficulty sleeping. (Complaint, ¶ 35.) On or about March 22, 2023, Plaintiff Jessica Ratinoff missed school due to illness, experiencing severe headaches, itchiness, chills, and lethargy. (Complaint, ¶ 37.) Plaintiffs experienced physical and emotional injury “as a result of the bedbug bites” and “incurred various expenses, including medical costs, the cost of the hotel room, the replacement cost of their luggage and clothing, along with other belongings exposed to the infestation at the hotel, and other costs.” (Complaint, ¶¶ 40, 41.)

Plaintiffs allege causes of action for (1) battery; (2) negligence; (3) intentional infliction of emotional distress; (4) fraudulent concealment; (5) private nuisance; (6) public nuisance; (7) breach of contract; (8) premises liability. Defendants demur to the Complaint. Defendant also

move to strike punitive damages and attorneys' fees from Plaintiffs' Complaint. Both motions are opposed¹ and Defendants filed replies.

II. DEMURRER

A. Legal Standard

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. Of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, "[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice." (*Mathews v. Becerra* (2019) 8 Cal.5th 756, 762, internal citations and quotations omitted; see also Code Civ. Proc., § 430.30, subd. (a).) "It is not the ordinary function of a demurrer to test the truth of the plaintiff's allegations or the accuracy with which he describes the defendant's conduct. ... Thus, ... the facts alleged in the pleading are deemed to be true, however improbable they may be." (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotations omitted.)

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while "[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact." (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

B. Discussion

i. Request for Judicial Notice in Support of Demurrer

As a preliminary matter, the court **GRANTS** Defendants' request for judicial notice of Plaintiffs' Complaint but notes that the request is unnecessary where, as here, the court is required to consider the contents of the complaint in ruling on a demurrer. (Evid. Code, § 452, subd. (d); Code Civ. Proc., § 430.30.)

ii. First Cause of Action: Battery

Defendants demur to Plaintiffs' cause of action for battery on the basis that Plaintiffs fail to allege the requisite elements.

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.) The tort is not limited to direct body-to-body contact. (See *Mount Vernon Fire Insurance Corporation v. Oxnard Hospitality Enterprise, Inc.* (2013) 219 Cal.App.4th 876, 881.) Instead, the intent element requires that the defendant either intended to commit a battery or was substantially certain that battery would

¹ The court admonishes Plaintiff for failing to seek leave to file an overlong opposition to Defendants' demurrer. (See Cal. Rules of Court, rule 3.1113 ["Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages."].)

result from his or her conduct. (*Ashcraft v. King* (1991) 228 Cal.App.3d 604, 613.) “In an action for civil battery the element of intent is satisfied if the evidence (or allegations) shows defendant acted with a ‘willful disregard’ of the plaintiff’s rights.” (*Ibid.*)

Here, Plaintiff alleges that Defendants acted “with the intent to cause a harmful or offensive contact with the body of Plaintiffs, or with a reckless disregard of the probability of causing such offensive contact to Plaintiffs” by “recklessly failing to warn Plaintiffs of the dangerous bedbug infestation and inoperable air conditioning unit in their room, given Defendants’ ... prior knowledge of an infestation and inoperable air conditioning unit. Plaintiffs did not receive any kind of warning or statement from Defendants...that the Subject Hotel had an infestation of bedbugs and inoperable air conditioning unit and did not regularly change the bedding, bed sheets, pillows, and skirts of the beds or thoroughly check and inspect them for infestations or maintain air conditioning unit.” (Complaint, ¶¶ 71, 72.) Defendants argue that a battery requires touching, or at least an allegation that Defendants directed offensive contact, and that Plaintiffs do not adequately allege “how long Defendants knew of the alleged bed bugs and how they failed to act.” (Demurrer, p. 7:16-17.)

Here, Plaintiffs allege that Defendants’ “intentional, deliberate, and reckless actions and inactions...caused Plaintiffs to be touched by the infestation of bedbugs and suffer illness from an inoperable air conditioning unit. This resulted in the offensive and unconsented contact with the body of the Plaintiffs.” (Complaint, ¶ 72.) Plaintiffs further allege that Defendants generally knew of bedbugs because guests left online reviews and complaints reporting bedbugs. (Complaint, ¶ 49.) However, Plaintiffs do not allege a basis for believing that Defendants knew of a bedbug infestation specifically in Plaintiffs’ room and failed to warn Plaintiffs, or that Defendants deliberately chose to not inspect or eradicate a bedbug infestation. Plaintiffs allege only that Defendants knew of an inoperable air conditioning unit and failed to inform Plaintiffs that the air conditioning unit in their room as well as units in other rooms were broken. (Complaint, ¶¶ 18, 19.) Plaintiffs do not allege similar reports to management regarding a bedbug infestation. Plaintiffs do not adequately allege facts to sustain a claim that Defendants knew about the bedbug infestation in Plaintiffs’ room and thus acted with intent. Nor do Plaintiffs adequately allege Defendants acted with reckless disregard for Plaintiffs’ safety. Plaintiffs allege that Defendants deliberately directed staff not to inspect rooms, change sheets, or perform basic maintenance to prevent or eradicate bedbug infestations, but these allegations are conclusory and not accompanied by any supporting facts. Moreover, Plaintiffs do not cite any cases establishing that unconsented to contact with bedbugs via a failure to warn or eradicate a bedbug infestation constitutes a battery.² To the extent Plaintiffs argue that the inoperable air conditioning caused harmful or offensive contact, Plaintiffs fail to adequately allege how their injuries were caused by the inoperable air conditioning, as Plaintiffs allege that their injuries were from bedbug bites and the associated itching, difficulty sleeping, headaches, and financial costs in remedying the infestation. (Complaint, ¶¶ 31-37.)

Defendants’ demurrer to Plaintiffs’ first cause of action for battery is **SUSTAINED with 30 DAYS’ LEAVE TO AMEND.** (See *Tarrar Enterprises, Inc. v. Associated Indemnity*

² Defendants cite *Mathias v. Accor Econ. Lodging, Inc.* (7th Cir. Ill. 2003) 347 F.3d 672 (*Mathias*). Lower federal court decisions are persuasive authority but the weight they are entitled to may vary. (See *Wozniak v. YouTube, LLC* (2024) 100 Cal.App.5th 893, 907, fn. 5.) The court in *Mathias* considered a factually analogous situation but the analysis quoted by Defendants is dicta and considering a different issue, which was entitlement to punitive damages.

Corp. (2022) 83 Cal.App.5th 685, 689 [denial of leave to amend on initial complaint rare and only appropriate when it conclusively appears that there is no possibility of alleging facts under which recovery can be obtained].)

iii. Second and Eighth Causes of Action: Negligence and Premises Liability

Defendants demur to Plaintiffs' second cause of action for negligence and eighth cause of action for premises liability on the basis that "Plaintiffs fail to properly plead (1) each Defendant's legal duty of care toward Plaintiffs, (2) each Defendant's breach of duty to Plaintiffs, and (3) injury to Plaintiffs caused by each Defendant's breach." (Demurrer, p. 7:25-27.)

"The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158, internal quotation marks and citations omitted.) "Hotel proprietors have a special relationship with their guests that gives rise to a duty to protect them against unreasonable risk of physical harm. [Citation.] The duty in each case [(as with common carriers)] is only one to exercise reasonable care under the circumstances. The defendant is not liable where he neither knows nor should know of the unreasonable risk...However, hotel guests can reasonably expect that the hotel owner will be reasonably diligent in inspecting its rooms for defects, and correcting them upon discovery." (*Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 431-432.)

Defendants argue that Plaintiffs fail to allege a duty or a breach of duty. "Here, the Complaint alleges that Defendants owed Plaintiffs the "duty to exercise reasonable care in the operation and maintenance of Plaintiffs' hotel room" and breached the duty of care to Plaintiffs in a number of ways, including by failing to inspect, failing to eradicate, and failing to notify. (Complaint, ¶¶ 85, 87.) Plaintiffs further allege that "Defendants, and DOES 1 through 20, knew, or should have known, that such acts would result in the high probability and likelihood that Plaintiffs would be bitten by bedbugs and that harm would result to Plaintiffs." (Complaint, ¶ 89.) Plaintiffs thus adequately allege that Defendants had a duty of care to Plaintiffs as hotel owners and that Defendants had actual or constructive notice that failing to inspect would be a failure to exercise reasonable care and have alleged that Defendants breached a duty of care to Plaintiffs.

Additionally, Plaintiffs also allege "negligence per se" by pointing to a number of statutes establishing a duty of care that they allege Defendants breached. (Complaint, ¶¶ 91, 92.) "Under the doctrine of negligence per se, compliance with the standard of conduct established by the relevant statute, ordinance, or regulation is adopted as the duty of care. [Citation.] This creates a rebuttable presumption of negligence where the statute, ordinance, or regulation is violated." (*Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1210.) Negligence per se "can be applied generally to establish a breach of due care under any negligence-related cause of action...Therefore, the doctrine of negligence per se is within the scope of pleadings that allege general negligence, as proof of a breach of duty is not limited to common law standards of care." (*Id.* at pp. 1210-1211.)

Defendants aver that Plaintiffs fail to allege facts sufficient to state a claim against each named Defendant. However, Plaintiffs allege that "Defendants, and DOES 1 through 20, authorized or ratified housekeeping staff at the hotel to either not change bed skirts on a regular

basis or to not inspect and ensure that bed skirts are free from a *Cimex lectularius* ('bedbug') infestation in Plaintiffs' room prior to Plaintiffs' arrival," and that Defendants authorized or ratified the conduct of Towneplace Suites' "employees, corporate, and management" by failing to terminate the employees responsible for Plaintiffs' injuries, failing to train, and failing to implement adequate procedures and policies to prevent bedbug infestations, among other allegations. (Complaint, ¶¶ 57, 80.) This is sufficient to state a claim against all named Defendants.

Defendants argue that Plaintiffs fail to allege injury but do not provide further argument or analysis on this point. (Demurrer, p. 7:27; see *People v. Dougherty* (1982) 138 Cal.App.3d 278, 282 [a point asserted without argument or authority in support is without foundation and requires no discussion].) Moreover, Plaintiffs allege that the "bedbug bites and illness" Plaintiffs suffered were caused by the infestation of bedbugs in Defendants' hotel room and thus adequately allege causation and injury. (Complaint, ¶ 90.)

Defendants' demurrer to Plaintiffs' second and eighth causes of action for negligence and premises liability is **OVERRULED**.

iv. Third Cause of Action: Intentional Infliction of Emotional Distress

Defendants demur to Plaintiffs' third cause of action for intentional infliction of emotional distress on the basis that Plaintiffs do not adequately allege extreme or outrageous conduct.

To state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 833.) "In order to avoid a demurrer, the plaintiff must allege with great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Ibid.*, internal citation and quotation marks omitted.)

Plaintiffs allege that Defendants "deliberately chose not to eradicate a bedbug infestation at the Subject Hotel and maintain the air conditioning unit in Plaintiffs' room, which caused Plaintiffs' physical and emotional harm. Defendants', and DOES 1 through 20, inclusive, conduct exceeds all bounds of that usually tolerated in a civilized community because people expect motels and hotels to have operable air conditioning units and be free from insect infestations. Plaintiffs allege this caused them present and ongoing emotional distress. Such conduct is deemed to be extreme, outrageous, and beyond all bounds of decency that one should expect in a civilized community." (Complaint, ¶ 102.)

As explained above, Plaintiffs fail to adequately allege that Defendants deliberately failed to eradicate the infestation or intentionally concealed the existence of the bedbugs from Plaintiffs during check-in at the hotel. Moreover, Plaintiffs fail to plead facts establishing severe emotional distress and the nature and extent of any emotional suffering. Plaintiffs argue in opposition that the Complaint pleads a routine practice of subjecting guests to bedbug infestations, but the Complaint does not adequately state facts to support that inference.

Therefore, the demurrer to the third cause of action for intentional infliction of emotional distress is **SUSTAINED with 30 DAYS' LEAVE TO AMEND.**

v. Fourth Cause of Action: Fraudulent Concealment

Defendants demur to Plaintiffs' fourth cause of action for fraudulent concealment on the basis that Plaintiffs do not "specifically plead facts constituting the required actual and justifiable reliance on any purported representation which any Defendant made to Plaintiffs." (Demurrer, p. 12:12-14.)

"[T]he elements of a cause of action for fraud based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850, internal quotation marks and citations omitted.)

"Fraud must be pleaded with specificity rather than with 'general and conclusory allegations' [Citation.] The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made. [Citation.]" (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 793 (*West*).) The specificity requirement applies equally to a cause of action for fraud and deceit based on concealment. (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1472.) Courts enforce the specificity requirement in consideration of its two purposes. (*West, supra*, 214 Cal.App.4th at p. 793.) The first purpose is to give notice to the defendant with sufficiently definite charges that the defendant can meet them. (*Ibid.*) The second is to permit a court to weed out meritless fraud claims on the basis of the pleadings; thus, the pleading should be sufficient to enable the court to determine whether, on the facts pleaded, there is any foundation, prima facie at least, for the charge of fraud. (*Ibid.*)

Plaintiffs allege that Defendants "were aware of substandard health conditions in the hotel with the existence of insects, specifically the bedbug infestation present and the inoperable air conditioning unit in the room" and had to disclose those facts to "guests and business invitees" because the bedbug infestation and inoperable air conditioning unit were "hidden dangers that could not be discovered by such invitees through the exercise of due care." (Complaint, ¶¶ 113, 115.) Plaintiffs further allege that front desk personnel intentionally concealed the facts of the bedbug infestation and inoperable air conditioning unit and "intended to deceive Plaintiffs and take advantage of Plaintiffs' lack of knowledge of the infestation in order to turn a profit on a night's stay at their hotel." (Complaint, ¶¶ 115, 121, 126.) However, this is insufficient to plead fraud., Plaintiffs do not allege facts showing Defendants intended to defraud them because Plaintiffs do not sufficiently allege that Defendants knew of a bedbug infestation in Plaintiffs' room and deliberately concealed the fact from Plaintiffs. Because

Plaintiffs fail to establish concealment or suppression of any facts, Plaintiffs fail to adequately state a claim for fraudulent concealment

Defendants' demurrer to the Complaint's fourth cause of action for fraudulent concealment is **SUSTAINED with 30 DAYS' LEAVE TO AMEND**.

vi. Fifth Cause of Action: Private Nuisance

Defendants demur to Plaintiffs' fifth cause of action for private nuisance on the basis that Plaintiffs fail to allege that Defendants were active participants in the creation of the nuisance such that they can be liable and that the claim is duplicative of the negligence claim.

Civil Code section 3479 defines a nuisance as “[a]nything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway, is a nuisance.” (Civ. Code, § 3479.) “A public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civ. Code, § 3480.) Every other nuisance is private. (Civ. Code, § 3481.)

“A private nuisance claim is a claim for ‘a nontrespassory interference with the private use and enjoyment of land.’ [Citation.]” (*Wilson v. Southern California Edison Co.* (2018) 21 Cal.App.5th 786, 802.) To establish a private nuisance claim, a plaintiff must plead and prove: (1) an interference with the plaintiff's use and enjoyment of that property; (2) that the invasion of the plaintiff's interest in the use and enjoyment of the land was substantial, i.e., that it caused the plaintiff to suffer “substantial actual damage”; and (3) the interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be “of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.” (*Ibid.*)

Defendants argue that “California Courts refuse to impose liability for nuisance ‘where the landlord was not an active participant in causing the’ alleged damages...The Complaint does not allege facts indicating such active participation by Defendants in creating any purported nuisance. Defendants could not have created or actively participated in creating the bedbugs.” (Demurrer, p. 13:4-10, citing *Resolution Trust Corp. v. Rossmoor Corp.* (1995) 34 Cal.App.4th 93, 100.) While the court in that case did find that there was “no case holding a lessor landowner liable for either [nuisance or trespass] where the landlord was not an active participant,” the court was analyzing the issue before the court, which was if a landowner could be liable where it was undisputed that the landowner did not create the nuisance. (*Resolution Trust Corp. v. Rossmoor Corp.*, *supra*, 34 Cal.App.4th at pp. 99-100.) Even in that instance, the court concluded that a landowner could be liable if it has been negligent. (*Id.* at pp. 100-101 [“No evidence shows [landowners] actively caused or contributed to the fuel contamination, so the propriety of the nonsuit turns on whether [plaintiff] adequately showed they were negligent.”].) Thus, Defendants' argument that the Complaint fails to allege Defendants were “active participants” in creation of a nuisance cannot be a basis to sustain demurrer.

Defendants also argue that the cause of action for nuisance is unduly duplicative of the cause of action for negligence in Plaintiff's Complaint. "Where negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim. [Citations.]" (*El Escorial Owners' Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337, 1349.) Here, Plaintiffs do not meaningfully distinguish between the negligence and nuisance causes of action and do not appear to address the argument on opposition.

Defendants' demurrer to the Complaint's fifth cause of action for private nuisance is **SUSTAINED with 30 DAYS' LEAVE TO AMEND.**³

vii. Sixth Cause of Action: Public Nuisance

Defendants demur to Plaintiffs' sixth cause of action for public nuisance on the basis that Plaintiffs fail to allege that the infestation actually affected a considerable number of persons or that Plaintiffs suffered unique harm. Defendants also argue that Plaintiffs fail to allege Defendants were active participants in the creation of the nuisance such that they can be liable and that the claim is improperly duplicative of the negligence claim.

" 'A public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.' [Citation.] As the California Supreme Court has explained, 'public nuisances are offenses against, or interferences with, the exercise of *rights common to the public*.' [Citation.] The interference must be both substantial and objectively unreasonable. [Citations.]" (*Melton v. Boustred* (2010) 183 Cal.App.4th 521, 542 (*Melton*)).

"The elements 'of a cause of action for public nuisance include the existence of a duty and causation.' [Citations.] Public nuisance liability 'does not hinge on whether the defendant owns, possesses or controls the property, nor on whether he is in a position to abate the nuisance; the critical question is whether the defendant created or assisted in the creation of the nuisance.' [Citations.]" (*Melton, supra*, 183 Cal.App.4th at p. 542.)

Plaintiffs allege that Defendants "poorly maintained the [Towneplace Suites] and created or caused to be [*sic*] create an infestation of bedbugs." (Complaint, ¶ 144.) Plaintiffs do not allege facts that there were other rooms in the hotel infested with bedbugs or that the bedbug infestation affected the community at large. Rather, Plaintiffs allege merely a risk of a community-wide effect: the "spread of bed bug infestation from the Subject Hotel room to the public and into their residence ... can affect the community at large." (Complaint, ¶ 148.) This speculation regarding a perceived risk of bedbug infestation is not sufficient to state a claim for relief. Furthermore, Plaintiffs fail to show that their harm was any different than the harm suffered by any other person exposed to bedbug infestation. (See CACI 2020 [to establish a public nuisance claim, plaintiff must show that he or she suffered harm that was different from

³ Defendants also argue for the first time on reply that Plaintiffs have failed to allege a sufficient property interest. The court has discretion to consider such additional issues and evidence so long as the party opposing the motion has notice and an opportunity to respond, which Defendant did not afford Plaintiff here. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) The court, in its exercise of discretion, does not consider this issue.

the type of harm suffered by the general public].) Plaintiffs do not address this argument on opposition.

Defendants' demurrer to the Complaint's sixth cause of action for public nuisance is **SUSTAINED with 30 DAYS' LEAVE TO AMEND.**

viii. Seventh Cause of Action: Breach of Contract

Defendants demur to Plaintiffs' seventh cause of action for breach of contract on the basis that Plaintiffs do not adequately allege the existence of a contract.

To prevail on a cause of action for breach of contract, the plaintiff must allege and prove: (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the contract must be attached and incorporated by reference. (*Otworth v. Southern Pacific Transportation* (1985) 166 Cal.App.3d 452, 459.) In an action based on a written contract, the plaintiff may plead the legal effect of the contract rather than its precise language. (See *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.)

“ ‘Under California law, a contract will be enforced if it is sufficiently definite (and this is a question of law) for the court to ascertain the parties' obligations and to determine whether those obligations have been performed or breached.’ [Citation.] ‘To be enforceable, a promise must be definite enough that a court can determine the scope of the duty [,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages.’ [Citations.] ‘Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable.’ [Citations.] ‘The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy.’ [Citations.] But, ‘[i]f ... a supposed “contract” does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract.’ [Citation.]” (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 208.)

Plaintiffs allege they “entered into a written contract for the rent of Plaintiffs' room in compliance with California Health & Safety Code at the hotel.” (Complaint, ¶ 153.) Because Plaintiffs allege the contract was written, Plaintiffs must attach a copy of the contract, plead the terms verbatim in the body of the Complaint, or plead the legal effect of the contract. Plaintiffs have not done so here. Plaintiffs allege they “did all of the significant things that the contract required them to do, most notably, payment of the rental price for Plaintiffs' room... Defendants, and DOES 1 through 20, breached the contract by failing to provide Plaintiffs a habitable room for lodging, as evident by the inoperable air conditioning unit and the presence of a bedbug infestation in Plaintiffs' room.” (Complaint, ¶¶ 154, 156.) However, Plaintiffs do not allege facts sufficient to ascertain parties' obligations such that this court could determine the existence of breach. Plaintiffs do not allege any terms of a written contract and instead allege that Plaintiffs performed the contract by paying the rental price for the room and Defendants breached the contract by failing to provide a habitable room for lodging. The

Complaint does not allege with sufficient specificity what Defendants promised to do such that this court could find that Defendants failed to meet their obligation to perform under the contract.

Defendants' demurrer to the Complaint's seventh cause of action for breach of contract is **SUSTAINED with 30 DAYS' LEAVE TO AMEND**.

Defendants' demurrer to the second and eighth causes of action is **OVERRULED**. Defendants' demurrer to the first, third, fourth, fifth, sixth, and seventh causes of action is **SUSTAINED with 30 DAYS' LEAVE TO AMEND**.

III. MOTION TO STRIKE

A. Legal Standard

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (Code Civ. Proc., § 436, subd. (a).) A court may also strike out all or any part of a pleading not drawn or filed in conformity with the laws of the State of California. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) The court's decision to strike the petition pursuant to section 436 is discretionary. (See Code Civ. Proc., § 436 ["The court may . . . strike"].)

B. Requests for Judicial Notice in Support of Motion to Strike

As a preliminary matter, the court **GRANTS** Defendants' request for judicial notice of Exhibit A, Plaintiffs' Complaint, but notes that the request is unnecessary where, as here, Defendants argue that the grounds for Defendants' motion to strike appears "on the face of the challenged pleading." (Code Civ. Proc., § 437.)

Defendants' request for judicial notice of Exhibit B ("Minute Order on Hearing of Demurrer with Motion to Strike, *Galan v. Wyndham Destinations, Inc.*, 2025 Cal. Super. LEXIS 64543; 2025 LX 567378, a true and correct copy"), Exhibit C ("Minute Order on Hearing of Motion to Strike without Demurrer; *Chavez v. Motel*, 2025 Cal. Super. LEXIS 68905; 2025 LX 514390, a true and correct copy"), Exhibit D ("Minute Order on Hearing on Motion to Strike; *Taylor v. Budget Inn Bellflower*, 2026 Cal. Super. LEXIS 5263; 2026 LX 14912, a true and correct copy") is **DENIED**. Defendants request judicial notice of Exhibits B through D under Evidence Code section 452, subdivisions (d) and (h). (Evid. Code, § 452, subds. (d) & (h) [allowing judicial notice of "records of any court of this state," and "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy"].) While the statements of decisions are records of a court within the State of California, those decisions have no binding or precedential effect on the decisions of this court. "Trial court decisions are not precedents binding on other courts under the principle of stare decisis." (*Harrott v. County of Kings* (2001) 25 Cal.4th 1138, 1148; see also *Becerra v. McClatchy Co.* (2021) 69 Cal.App.5th 913, 929 [a statement of decision in a superior court case with similar facts was a proper subject of judicial notice, it had no binding or precedential effect and thus was of limited relevance].) The court denies Defendants' request for judicial notice of Exhibits B through D because requested documents are not relevant. (See *Ross v. Seyfarth Shaw*

LLP (2023) 96 Cal.App.5th 722, 745 [authority to take judicial notice subject to the limitation that the proffered evidence be relevant].)

C. Punitive Damages

Defendants move to strike references to punitive damages in Plaintiff's Complaint because the allegations of the complaint do not plead sufficient facts to show malice, oppression, or fraud as required by Civil Code section 3294 against any Defendant.

"In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. [Citation.] These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. [Citation.] ' "Malice" ' is defined in the statute as conduct 'intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.' [Citations.] ' "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.' [Citation.] ' "Fraud" ' is 'an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.' [Citation.]" (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

Also, "[a]n employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).)

"In determining whether a complaint states facts sufficient to sustain punitive damages, the challenged allegations must be read in context with the other facts alleged in the complaint. Further, even though certain language pleads ultimate facts or conclusions of law, such language when read in context with the facts alleged as to defendants' conduct may adequately plead the evil motive requisite to recovery of punitive damages. [Citation.]" (*Monge v. Super. Ct.* (1986) 176 Cal.App.3d 503, 510.)

This court has sustained Defendants' demurrers to the first, third, and fourth causes of action, and thus Defendants' request to strike paragraphs 83, 111, and 133 are MOOT.

Defendants also move to strike paragraph 100 from the Complaint, as well as the request for punitive damages in the Complaint's prayer for relief.

The remaining causes of action in the Complaint are negligence and premises liability, which are both nonintentional torts. "Where nonintentional torts involve conduct performed without intent to harm, punitive damages may be assessed 'when the conduct constitutes conscious disregard of the rights or safety of others.' [Citations.] ' "[A] conscious disregard of the safety of others may [thus] constitute malice within the meaning of section 3294 of the

Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.”

’ [Citations.] Consequently, to establish malice, ‘it is not sufficient to show only that the defendant’s conduct was negligent, grossly negligent or even reckless.’ [Citation.]” (*Bell v. Sharp Cabrillo Hosp.* (1989) 212 Cal.App.3d 1034, 1044.)

Here, the court concludes there are insufficient facts to support an award of punitive damages. Plaintiffs allege that “[a]n officer, director, or managing agent of Defendants, and DOES 1 through 20, authorized or ratified the fraudulent conduct of the hotel employees by failing to remedy prior bedbug infestations and deliberately concealing the fact of their presence in the hotel.” (Complaint, ¶ 67.) In addition, Plaintiffs allege that “Management did not place adequate safeguards to protect clients from an ongoing bedbug exposure. Instead of making a change to management to protect clients from inadequate oversight, Defendants, and DOES 1 through 20, has kept management in place,” and that “Defendants, and DOES 1 through 20, authorized or ratified housekeeping staff at the hotel to either not change bed skirts on a regular basis or to not inspect and ensure that bed skirts are free from a [bedbug] infestation in Plaintiffs’ room prior to Plaintiffs’ arrival.” (Complaint, ¶¶ 50, 57.) Plaintiffs do not allege sufficiently specific facts showing an officer, director or managing agent had advance knowledge of the alleged unfitness of any employee or staff who engaged in recklessness, malice, oppression or fraud. As explained above, Plaintiffs do not adequately allege that any Defendant knew about a bedbug infestation. Plaintiffs’ allegations that management failed to take adequate safeguards or instructed hotelkeeping staff to not inspect the bed skirts are conclusory and not accompanied by sufficient factual allegations.

Moreover, Plaintiffs’ allegations do not sufficiently establish that Defendant engaged in “despicable conduct” or acted with “willful and conscious disregard.” Plaintiffs argue that Defendants acted with extreme indifference to the risk of injury by failing to prevent or eradicate a bedbug infestation. However, as explained above, Plaintiffs do not sufficiently allege that Defendants knew about an ongoing bedbug infestation. As such, Plaintiffs’ allegations do not go beyond “ordinary negligence” and cannot support an award of punitive damages. (See *Lackner v. North* (2006) 135 Cal.App.4th 1188; *Lackner v. North* (2006) 135 Cal.App.4th 1188, citing *Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269 [“[t]he mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages...Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.”].)

Defendants’ motion to strike paragraph 100 from the Complaint, as well as the request for punitive damages in the Complaint’s prayer for relief is **GRANTED, with 30 DAYS’ LEAVE TO AMEND**. (See *Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 360 [with respect to a motion to strike, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question].)

D. Attorneys’ Fees

Defendants move to strike references to attorneys’ fees in Plaintiff’s Complaint because Plaintiffs do not allege “a right to recover attorneys’ fees based on statute, contract, or any other law. (Motion to Strike, p. 9:19.)

Attorneys' fees are not recoverable unless expressly allowed by statute or contract. (Code Civ. Proc., § 1021.) Plaintiffs fail to address Defendants' arguments. (See *Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is "equivalent to a concession"]; see also *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal. App. 4th 507, 529 [failure to challenge a contention in a brief results in the concession of that argument].) The motion to strike is **GRANTED, with 30 DAYS' LEAVE TO AMEND.**

DISPOSITION

Defendants' demurrer to the second and eighth causes of action is **OVERRULED**. Defendants' demurrer to the first, third, fourth, fifth, sixth, and seventh causes of action is **SUSTAINED with 30 DAYS' LEAVE TO AMEND**. Defendants' motion to strike is **GRANTED** in part.

The court will prepare the Order.

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Calendar Line 5**Case Name:** *Cortes v. General Motors LLC***Case No.:** 25CV462804**PLAINTIFF'S MOTION FOR LEAVE TO AMEND COMPLAINT****BACKGROUND**

On April 7, 2025, Plaintiff Edgar Aguilar Cortes ("Plaintiff") initiated this Lemon Law action against defendant General Motors LLC ("Defendant").

Plaintiff asserted claims for violation of the Magnuson-Moss Act and for breach of express warranty. According to the complaint's allegations, Plaintiff purchased a 2020 Chevrolet Silverado 2500 ("Subject Vehicle") and received an express, written warranty from Defendant. (Complaint, ¶¶ 6-7.) The vehicle was delivered to Plaintiff with serious defects and nonconformities to warranty, including various engine defects. (*Id.* at ¶ 8.)

On June 25, 2026, Defendant filed a motion for summary judgment of the complaint and its two causes of action. A day later, on June 26, 2026, Plaintiff filed a motion for leave to amend his pleading. Defendant opposes the motion. For the reasons stated below, the motion is granted.

LEGAL STANDARD

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . ." (Code Civ. Proc., § 473, subd. (a)(1); see also *Bedolla v. Logan & Frazer* (1975) 52 Cal.App.3d 118, 135-136 ["[T]he trial court has wide discretion in allowing the amendment of any pleading".]) Indeed, "[i]f the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Super. Ct.* (1959) 172 Cal.App.2d 527, 530.) However, if the party seeking amendment has been dilatory *and* the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (See *Hirsa v. Superior Ct.* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence or added costs of preparation, increased burden of discovery, etc. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

ANALYSIS

Plaintiff seeks to file a first amended complaint ("FAC") in order to add Paragraphs 32 to 45 to state a third cause of action for breach of warranty, based on Defendant's failure to repair the Subject Vehicle within a reasonable number of attempts, that is not predicated on the California Commercial Code.

Plaintiff argues that 1) the cause of action is based on the same facts as the current causes of action and no new factual issues are raised; 2) trial is not scheduled until November 23, 2026; 3) Defendant has not taken depositions yet and the same discovery requests apply to the new claim; and 4) Defendant will therefore not be unfairly prejudiced.

In opposition, Defendant argues that Plaintiff seeks to add the third cause of action, which could have been added at the outset, because the initial claims are subject to summary judgment/adjudication and are no longer viable. Plaintiff's motion acknowledges that

Defendant has filed a motion for summary judgment but asserts that Defendant raises a “novel argument that it is not subject to the California Commercial Code in this action because it did not sell the [Subject Vehicle] directly to [Plaintiff].” As a result, Plaintiff seeks to amend the pleading to add a claim for breach of warranty that is not dependent on the Commercial Code.

In response to Plaintiff’s assertions, Defendant contends that Plaintiff was on notice of undisputed facts and arguments that have since been asserted in the motion for summary judgment at the time he filed the initial pleading and he did not seek to amend the pleading during the first eleven months the case was pending. However, in Plaintiff counsel’s declaration, she states that Defendant did not disclose its argument prior to the filing of the motion for summary judgment and did not disclose the argument in response to Plaintiff’s discovery requests.

The Court notes that it has not ruled on Defendant’s motion for summary judgement (pending January 29, 2027) and therefore, makes no ruling as to the viability of Plaintiff’s claims. With that said, Defendant’s motion relies on *Ballesteros v. Ford Motor Co.* (2025) 109 Cal.App.5th 1196, 1216-1217 (*Ballesteros*) to support its argument that Plaintiff cannot maintain a cause of action under the Commercial Code because it did not sell Plaintiff the Subject Vehicle directly and therefore no express warranty was created. (See Defendant’s Motion for Summary Judgment, p. 4:5-24.) However, *Ballesteros* did not involve claims asserted under the Commercial Code and was instead related to a motion to compel arbitration and whether a car manufacturer could invoke an arbitration clause in a sales contract to which it was not a party, not whether an auto manufacturer’s warranty is subject to the Commercial Code for subsequent purchasers of the Subject Vehicle. (See *Blumhorst v. Jewish Family Services of Los Angeles* (2005) 126 Cal.App.4th 993, 1004 [cases are not authority for proposition not actually considered].) Thus, Defendant’s assertion that leave to amend should be denied because the claims would not be successful is not persuasive.

In this case, Plaintiff has not yet amended his pleading. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [absent prejudice, complaint can be amended at any stage, up to and including trial].) As judicial policy favors resolution of all disputed matters between the parties, leave to amend is generally liberally granted. (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 412 (*Kolani*).) Moreover, “a plaintiff wishing ‘to rely upon unpleaded theories to defeat summary judgment’ must move to amend the complaint **before** the hearing.” (*Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 648 [emphasis added].) Here, Plaintiff filed for leave to amend one day after the motion for summary judgment was filed and before any hearing was held. Finally, the Court does not find persuasive Defendant’s argument that it will be prejudiced. As noted above, leave to amend may be denied where there will be prejudice such as delay in trial, loss of critical evidence, or added costs to the preparation. (See e.g., *Kolani, supra*, 64 Cal.App.4th at p. 412.) Here, there is no argument that evidence has been lost during the delay and further, the proposed claim is based on the same set of general facts as the original two claims.

For the above reasons, the motion for leave to file a first amended complaint is GRANTED.

The Court will prepare the final order.

Calendar Line 6

Case Name: *John Doe L.M. v. Craig Chandler et al.*

Case No.: 25CV471073

BACKGROUND

Plaintiff John Doe L.M. has sued the Evergreen Elementary School District and Craig Chandler, alleging that Chandler sexually assaulted Plaintiff at O.B. Whaley Elementary School during the 2007-2008 school year, when Plaintiff was approximately ten years old and Chandler was employed as his teacher. Chandler was subsequently convicted of aggravated sexual assault of a child and sentenced to seventy-five years to life in prison.

On October 23, 2025, Plaintiff served a deposition subpoena for production of business records on nonparty California Commission on Teacher Credentialing (“CCTC” or “Commission”), seeking investigative, disciplinary, credentialing, and related records concerning Craig Richard Chandler. The Commission produced several hundred pages of documents but withheld additional records identified in a privilege log.

The parties have conferred regarding the Commission's privilege log and the categories of documents that remained withheld but were unable to resolve all disputed issues.

THE PARTIES' POSITIONS**Plaintiff's Position**

Plaintiff contends that the privilege log identifies credentialing and disciplinary materials relevant to this action, including Chandler's 2002 Application for Character and Identification Clearance and accompanying criminal-conviction disclosure, his application for a credential authorizing public school service, internal Commission notes concerning his application and criminal diversion, a case-action chronology concerning licensure, and materials addressing whether a credential should issue.

The log also identifies requests by the Commission to courts and law-enforcement agencies for records concerning Chandler; communications concerning his placement on mandatory leave and the District's investigation; internal records concerning possible disciplinary action; criminal investigation and court records; and materials concerning the eventual suspension and mandatory revocation of Chandler's credentials.

Plaintiff contends that the Commission's proposed temporal limitation to the 2007-2008 school year is improper because a document created after the alleged abuse may concern earlier events, identify prior complaints or witnesses, reveal sources of information, or otherwise bear on Chandler's fitness to teach and the institutional response to his conduct.

Plaintiff further contends that criminal-history records involving nonsexual offenses are relevant because those records formed part of the Commission's credentialing and disciplinary process. Plaintiff argues that the Commission's objection to third-party-authored documents improperly conflates discoverability with admissibility.

Finally, Plaintiff relies on Education Code section 44230, subdivision (a)(2), which expressly permits disclosure of credential-related information pursuant to an order from a court of competent jurisdiction.

Commission's Position

First, the Commission relies on *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039, arguing that a business-records subpoena cannot compel a nonparty custodian to produce records generated by third parties when the custodian cannot make the certifications required by Evidence Code section 1561.

The Commission further contends that Plaintiff has not established, with evidence, the relevance of the requested materials. Relying on *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, the Commission argues that a party seeking document discovery from a nonparty must provide evidence establishing the potential evidentiary value of the requested materials.

Third, again relying on *Calcor*, the Commission argues that Plaintiff has not demonstrated that the disputed materials cannot be obtained from parties to the action.

Fourth, the Commission asserts that its records are subject to confidentiality requirements under Education Code sections 44230, 44245, and 44248.

Finally, the Commission seeks monetary sanctions under Code of Civil Procedure section 2023.020, contending that Plaintiff scheduled the motion without adequately meeting and conferring concerning each disputed issue.

DISCUSSION

I. Nature and Scope of the Business-Records Subpoena

The Commission's principal argument concerns the effect of *Cooley v. Superior Court*, *supra*, 140 Cal.App.4th 1039.

In *Cooley*, a nonparty district attorney's office was served with a deposition subpoena for business records seeking documents generated by other entities. The Court of Appeal held that the district attorney's office could not be compelled to produce those documents because its custodian could not make the attestations required by Evidence Code section 1561. The court explained that a person or entity that merely possesses or maintains a record is not necessarily the custodian or other qualified witness contemplated by section 1561 if that person cannot attest to the circumstances concerning the record's preparation and maintenance. (*Cooley*, *supra*, 140 Cal.App.4th at pp. 1043-1046.) Code of Civil Procedure section 2020.410, subdivision (c), likewise provides that a deposition subpoena for business records is directed to the custodian of the records or another person qualified to certify them.

Accordingly, the Court rejects Plaintiff's broader contention that every document physically maintained in the Commission's files necessarily constitutes a business record of the Commission subject to production under this subpoena.

The relevant inquiry is whether the Commission is the custodian or another person qualified to certify the particular record under Evidence Code section 1561. A document generated by the Commission in the ordinary course of its credentialing, investigative, or disciplinary activities may be a Commission business record even if it incorporates information obtained from another source. By contrast, the Commission may not be compelled under this business-records subpoena to produce a document generated by a third party merely because the Commission received or maintains the document if the Commission cannot satisfy the certification requirements of Evidence Code section 1561.

Thus, the Commission shall produce responsive, nonprivileged records generated or prepared by the Commission or its personnel in the ordinary course of its credentialing, investigative, or disciplinary functions. As to records generated by third parties, including law-enforcement agencies, courts, or school districts, the Commission need not produce those records pursuant to this business-records subpoena if it cannot satisfy the certification requirements applicable to those records under Evidence Code section 1561.

This ruling does not preclude Plaintiff from seeking third-party-generated records through an appropriate discovery procedure directed to the entity that generated or maintains the original records.

II. Particularity and Relevance

Calcor Space Facility, Inc. v. Superior Court, supra, 53 Cal.App.4th 216, holds that a subpoena to a nonparty must describe the documents sought with reasonable particularity and that generalized demands unsupported by evidence showing the potential evidentiary value of the information sought are improper. (*Id.* at pp. 222-224.) The burden rests on the party seeking the nonparty discovery to provide evidence from which the Court can determine that the requested material is admissible or reasonably calculated to lead to the discovery of admissible evidence. (*Id.* at p. 224.)

Here, to the extent the subpoena identifies specific categories of Chandler's Commission credentialing, investigative, and disciplinary records, those categories bear a sufficiently direct relationship to the claims and issues presented in this action.

The privilege log identifies, among other things, Chandler's credential applications and criminal-conviction disclosures, Commission investigations, Commission requests for information concerning Chandler, internal credentialing and disciplinary materials, and materials concerning the Commission's subsequent action against his credentials.

The Court finds these categories facially relevant to an action alleging that a school district employed and supervised a teacher who sexually abused a student. The records may bear on Chandler's background, the information available to governmental entities responsible for credentialing him, the circumstances under which information concerning him was obtained and evaluated, and, where supported by the evidence, information bearing on notice, foreseeability, or the adequacy of institutional safeguards.

The Court does not find that the Commission's knowledge is equivalent to the District's knowledge, nor does the Court find that the requested records establish actual or constructive

notice by the District. Those are issues for determination on the merits. The records are discoverable to the extent they may reasonably lead to evidence bearing on those issues.

III. Temporal Scope

The Court declines to impose an absolute limitation to the 2007-2008 school year.

The date on which a document was created does not, standing alone, determine its relevance. A document created after 2008 may concern earlier conduct, prior complaints, witnesses, information obtained during a later investigation concerning earlier events, or Chandler's historical credentialing and disciplinary status.

At the same time, the absence of a categorical cutoff does not authorize unrestricted discovery of the Commission's files. Post-2008 documents must have a reasonable relationship to the claims and issues in this action. This includes documents concerning Chandler's credentialing history, investigations or disciplinary proceedings concerning his conduct, and information concerning earlier complaints, conduct, witnesses, or circumstances bearing on notice, foreseeability, or Chandler's fitness to teach.

IV. Criminal-History Records

The Court finds that Chandler's criminal history may be relevant to the extent it was disclosed in his credential applications, investigated by the Commission, or otherwise formed part of the Commission's evaluation of his fitness for credentialing or discipline.

The fact that a prior offense was not sexual in nature does not, standing alone, render the Commission's records concerning that offense irrelevant. The relevance of such records lies in their relationship to the Commission's credentialing and disciplinary process, including what Chandler disclosed, what information the Commission obtained, what inquiry it undertook, and how it evaluated the information.

Nothing in this ruling requires the Commission to disclose confidential criminal offender record information in violation of applicable law. Publicly available court records shall not be treated as confidential criminal offender record information solely because they concern a criminal proceeding.

V. Education Code Confidentiality

Education Code section 44230, subdivision (a)(2), provides that, except as otherwise specified by statute, information relating to credentials beyond the information identified in subdivision (a)(1) may not be disclosed by the Commission absent an order from a court of competent jurisdiction.

The statute therefore expressly contemplates judicially authorized disclosure. The Court rejects the Commission's contention that section 44230 categorically bars discovery of the requested information.

Education Code section 44245 concerns the confidentiality of hearings and deliberations relating to adverse credential action and provides that final actions are public. Section 44248 imposes criminal penalties for certain unauthorized disclosures of information obtained through Commission proceedings or investigations.

These statutes establish substantial confidentiality interests, but they do not create an absolute bar to disclosure pursuant to a valid court order. The Court will therefore protect confidential information to the extent required by law while permitting discovery of responsive, relevant, nonprivileged material.

VI. Privilege Assertions

A. Attorney-Client Privilege and Attorney Work Product

The Commission may withhold documents protected by the attorney-client privilege or attorney work product doctrine.

The privilege log identifies entries 47, 76, 79, 91, and 92 as reflecting communications or materials involving Commission counsel. Based on the descriptions presently provided, the Court sustains the asserted attorney-client privilege and/or work-product protection as to those entries.

Evidence Code section 915, subdivision (a), generally prohibits requiring disclosure of privileged material solely to determine the validity of the privilege claim. The Court therefore will not require those materials to be lodged for in camera inspection merely to adjudicate the asserted attorney-client or work-product privilege.

B. Deliberative Process Privilege

The Commission also asserts a deliberative-process privilege over internal case-tracking reports, chronologies, file notes, and other materials concerning credentialing and disciplinary decisions.

The Court recognizes that governmental deliberative materials may be protected where disclosure would reveal predecisional deliberations, recommendations, opinions, evaluations, or mental processes concerning a governmental decision. The privilege, however, does not attach merely because a document is maintained in a regulatory file or concerns a discretionary governmental decision.

Purely factual material, historical information, and ministerial status information are not protected merely because they appear in a document that also contains deliberative material. Where factual material can reasonably be segregated without revealing protected deliberative communications or mental processes, the factual material shall be produced with appropriate redactions.

The Commission has not sufficiently particularized all of its deliberative-process assertions to permit the Court to determine from the present log which entries contain protected deliberations and which contain factual or ministerial information.

Accordingly, the Commission shall serve an amended privilege log as set forth below.

C. Official Information Privilege — Evidence Code Section 1040

Evidence Code section 1040 provides a qualified privilege for official information acquired in confidence by a public employee that is not subject to disclosure under the circumstances specified in the statute. Section 1040, subdivision (b)(1), concerns information disclosure of which is prohibited by federal or state law. Section 1040, subdivision (b)(2), applies where the necessity for preserving confidentiality outweighs the necessity for disclosure in the interest of justice.

To the extent the Commission relies on section 1040, subdivision (b)(1), it must identify the specific statute that allegedly prohibits disclosure. To the extent the Commission relies on subdivision (b)(2), the Court must balance the competing interests on the particular record presented.

The Court recognizes the legitimate governmental interest in protecting confidential credentialing and disciplinary information. The Court also recognizes the substantial interest in disclosure of information that may bear on the claims in this action, particularly where the records concern a teacher who was subsequently convicted of aggravated sexual assault.

The Court therefore declines to sustain a blanket assertion of official-information privilege over the requested materials. Any remaining claim under Evidence Code section 1040 shall be particularized in the amended privilege log.

VII. Privacy and Redactions

The Commission's privacy concerns regarding third-party identifying information are legitimate.

The Commission may redact nonrelevant personal identifying information, including Social Security numbers, dates of birth, residential addresses, telephone numbers, and comparable information concerning nonparties.

The Commission may also seek additional protection for specifically identified privacy interests, including information concerning minors or alleged victims, upon a particularized showing.

The Commission shall not redact substantive information merely because it identifies a witness, complainant, or other person whose identity or information may be relevant to the claims or defenses.

All redactions shall be identified by a notation stating the general basis for the redaction.

VIII. Protective Order

The parties shall meet and confer regarding a protective order governing confidential materials produced pursuant to this ruling.

The protective order shall limit the use of confidential materials to purposes of this litigation and shall contain appropriate provisions concerning dissemination and the filing of confidential materials with the Court.

IX. Amended Privilege Log; No In Camera Review at This Time

The Court declines to conduct an in camera review at this time.

As to attorney-client and work-product claims, Evidence Code section 915, subdivision (a), generally precludes requiring disclosure of privileged material solely to determine the validity of the privilege claim.

As to deliberative-process and official-information claims, the Court finds that additional particularization is presently more appropriate than wholesale in camera review.

Within 15 days, the Commission shall serve an amended privilege log addressing each entry withheld solely on deliberative-process or official-information grounds, including entries 7-46, 48, and 82-85, to the extent those entries remain withheld on those grounds.

For each such entry, the amended log shall:

1. identify the specific governmental decision involved;
2. identify whether the material is predecisional;
3. identify the particular deliberative or confidential governmental interest asserted;
4. explain why the material reflects protected deliberation, opinion, recommendation, evaluation, or other protected governmental process rather than merely facts, historical information, chronology, or ministerial status; and
5. state whether factual material can reasonably be segregated and produced with redactions.

For any entry withheld under Evidence Code section 1040, the Commission shall identify the specific statutory provision, if any, on which it relies under section 1040, subdivision (b)(1), or shall provide the particularized showing supporting the balancing required by subdivision (b)(2).

The Court may order in camera review if the amended privilege log and the parties' subsequent submissions do not permit resolution of the remaining privilege claims.

X. Availability of Documents From the Parties

The Commission argues that Plaintiff has not demonstrated an inability to obtain the requested materials from parties to the action.

Calcor recognizes that, as between parties and nonparties, the burden of discovery ordinarily should be placed on the nonparty only where the parties do not possess the requested material. (*Calcor*, supra, 53 Cal.App.4th at p. 225.)

That principle weighs against compelling the Commission to produce records that are equally available from the District, Chandler, or another appropriate source.

It does not, however, preclude discovery of Commission-generated records that are maintained by the Commission and are not reasonably available from the parties. The Commission is the natural custodian of its own credentialing and disciplinary records.

The Court therefore declines to deny the motion categorically on this ground.

XI. Sanctions

Plaintiff's request for monetary sanctions is denied. The Commission's opposition raised substantial issues concerning the scope of nonparty business-records subpoenas, statutory confidentiality, and qualified privileges.

The Commission's request for monetary sanctions under Code of Civil Procedure section 2023.020 is also denied.

Section 2023.020 requires monetary sanctions where a party or attorney fails to meet and confer as required. The record before the Court establishes that the parties engaged in substantive meet-and-confer efforts, including communications following the Court's June 24, 2026 order and further conferral on July 7, 2026, concerning the Commission's privilege log and the categories of records that remained disputed.

The Court therefore finds that Plaintiff did not fail to meet and confer as required and that sanctions are not warranted.

RULING

The motion is **GRANTED IN PART and DENIED IN PART** as follows:

1. **Commission-Generated Records.** Within 30 days, the Commission shall produce responsive, nonprivileged records generated or prepared by the Commission or its personnel in the ordinary course of its credentialing, investigative, or disciplinary functions, subject to the limitations stated in this ruling.
2. **Third-Party-Generated Records.** The Commission is not required, pursuant to this business-records subpoena, to produce records generated by third parties where the Commission cannot satisfy the certification requirements applicable to those records under Evidence Code section 1561. This includes, as applicable, records generated by law-enforcement agencies, courts, or school districts. This ruling is without prejudice to Plaintiff seeking such records through an appropriate discovery procedure directed to the entity that generated or maintains the records.
3. **Temporal Scope.** The Commission's proposed categorical limitation to the 2007-2008 school year is **REJECTED**. Responsive documents created after 2008 are not excluded solely because of their creation date, but must bear a reasonable relationship to the claims and issues in this action, including Chandler's credentialing history, investigations, disciplinary proceedings, or information concerning earlier complaints,

conduct, witnesses, or circumstances bearing on notice, foreseeability, or Chandler's fitness to teach.

4. **Criminal History.** Records concerning Chandler's criminal history shall be produced to the extent they are otherwise responsive and discoverable and were disclosed in his applications, investigated by the Commission, or otherwise formed part of the Commission's evaluation of his fitness for credentialing or discipline. Nothing in this order requires disclosure of confidential criminal offender record information in violation of applicable law.
5. **Attorney-Client Privilege and Work Product.** The Commission may withhold privilege-log entries 47, 76, 79, 91, and 92 to the extent protected by the attorney-client privilege or attorney work product doctrine as described in the privilege log.
6. **Deliberative Process and Official Information.** Within 15 days, the Commission shall serve an amended privilege log addressing each entry withheld on deliberative-process or official-information grounds, including entries 7-46, 48, and 82-85, to the extent those entries remain withheld on those grounds. The amended log shall comply with Section IX of this ruling. The Commission shall produce factual and other nonprivileged material that can reasonably be segregated from protected material.
7. **Privacy.** The Commission may redact nonrelevant personal identifying information of nonparties, including Social Security numbers, dates of birth, residential addresses, and telephone numbers. The Commission may seek additional protection for specifically identified privacy interests upon a particularized showing. Each redaction shall be identified by a notation stating the general basis for the redaction.
8. **Protective Order.** The parties shall meet and confer regarding a protective order within 15 days. If they cannot agree, each side shall submit a proposed protective order within 15 days. Production of documents subject to confidentiality protection may be stayed pending entry of an appropriate protective order.
9. **Sanctions.** All requests for monetary sanctions are **DENIED**.

Plaintiff shall prepare a formal order consistent with this ruling within 7 days of the hearing, accompanied by the necessary EFS-020 form.

Calendar Line 7

Case Name: *In re: 7072 Goldenspur Loop, San Jose CA 95138*

Case No.: 25CV481938

CLAIMS TO SURPLUS FUNDS

The matter is before the Court on competing claims to surplus proceeds in the amount of \$634,249.62 arising from the August 27, 2025 trustee's sale of the property located at 7072 Goldenspur Loop, San Jose, California.

On January 7, 2026, the trustee deposited the surplus proceeds with the Clerk of the Court. Claimant, the Franchise Tax Board ("FTB"), filed a claim for surplus funds on March 18, 2026. On May 4, 2026, claimant Carly A. Santos subsequently filed a claim asserting entitlement to \$600,000 based on a declared homestead.

The Court previously continued the matter and directed the parties to submit supplemental briefing concerning the interplay among Civil Code sections 2924j and 2924k, Code of Civil Procedure section 704.950(c), Government Code section 7170, and the authorities cited by the parties. The Court has considered the original claims, the supplemental briefing, and the evidence submitted concerning the FTB's liens and Ms. Santos's homestead declaration.

Discussion

Civil Code section 2924k establishes the order for distribution of surplus proceeds following a trustee's sale. After payment of the costs and expenses of the sale and the obligation secured by the deed of trust that was foreclosed, the statute provides for payment of obligations secured by junior liens or encumbrances in order of priority, with any remaining balance paid to the trustor or the trustor's successor in interest. (Civ. Code, § 2924k, subd. (a).)

The principal dispute concerns whether Ms. Santos's declared homestead requires the Court to deduct \$600,000 from the surplus before applying the lien-priority provisions of section 2924k.

The Declared Homestead

Ms. Santos relies principally on Code of Civil Procedure section 704.950(c) and *Smith v. James A. Merrill, Inc.* (1998) 64 Cal.App.4th 94. *Smith* involved a trustee's sale and competing claims to the remaining sale proceeds. The Court of Appeal held that a judgment lien did attach to property subject to a previously recorded declared homestead, but that Code of Civil Procedure section 704.950(c) governed the amount of that judgment lien. Thus, the homestead exemption was relevant to determining the amount of the judgment lien under section 704.950(c). (*Smith*, supra, 64 Cal.App.4th at pp. 99-102.)

Smith did not involve a state tax lien or Government Code section 7170. The Court therefore finds *Smith* instructive concerning the operation of section 704.950(c), but it does not resolve the effect of a declared homestead on the FTB's state tax lien.

Government Code section 7170, subdivision (a), *expressly* provides that a state tax lien attaches to property belonging to the taxpayer and located in California and that "[a] state tax lien attaches to a dwelling notwithstanding the prior recording of a homestead declaration."

The Legislature has thus specifically addressed the relationship between a state tax lien and a declared homestead. The Court concludes that section 7170 permits the FTB's lien to attach notwithstanding the homestead declaration and that section 704.950(c), which governs the amount of a judgment lien against a declared homestead, does not require the Court to reduce the FTB's state tax lien by the homestead exemption.

The Court has considered Ms. Santos's reliance on *Curtis v. County of Kern* (1974) 37 Cal.App.3d 704. *Curtis* held that a prior recorded homestead took precedence over a tax lien.

Curtis v. County of Kern (1974) 37 Cal.App.3d 704 is distinguishable. *Curtis* concerned a county tax lien for unsecured personal property taxes created under Revenue and Taxation Code sections 2191.3 and 2191.4. Those statutes expressly provided that the particular lien at issue had the force, effect, and priority of a judgment lien. The Court of Appeal therefore treated the county tax lien as a judgment lien and held that it was subordinate to the prior recorded homestead. (*Curtis*, supra, 37 Cal.App.3d at pp. 706-707.)

The FTB lien at issue here is governed by the current *state* tax lien statutory scheme, including Government Code section 7170. Again, section 7170 expressly provides that a state tax lien attaches to a dwelling notwithstanding the prior recording of a homestead declaration. Accordingly, *Curtis* does not control the present claim.

Recording Chronology

The chronology independently supports the FTB's claim in this case. The evidence establishes that the FTB recorded its first state tax lien on January 19, 2012. Ms. Santos recorded her Declaration of Homestead on November 1, 2024—more than 12 years after the FTB's first lien. The trustee's sale occurred on August 27, 2025.

Thus, the FTB's lien was already recorded when Ms. Santos recorded her homestead declaration.

The Court therefore need not decide whether a different result would follow if a homestead declaration had preceded the recording of the FTB's lien. Here, the FTB's lien predates the homestead declaration. Moreover, section 7170 expressly provides that a state tax lien attaches notwithstanding a prior homestead declaration.

Civil Code Section 2897 and Priority

Civil Code section 2897 provides the general rule that, other things being equal, different liens upon the same property have priority according to the time of their creation.

Here, the evidence establishes that the FTB's January 19, 2012 lien is the first-recorded junior lien identified in the record. The amount secured by that lien substantially exceeds the entire \$634,249.62 surplus held by the Court.

Civil Code section 2924k, subdivision (a)(3), provides for payment of the outstanding balance of obligations secured by junior liens or encumbrances in the order of their priority before any remaining balance is paid to the trustor or the trustor's successor in interest.

Accordingly, the FTB's lien is entitled to payment from the surplus before any amount is payable to Ms. Santos. Because the amount secured by the FTB's lien exceeds the entire surplus, no balance remains for distribution to Ms. Santos.

The Court's Consideration of Hardship

The Court recognizes the significant hardship presented by the circumstances of this case. Ms. Santos has lost her residence through foreclosure, and the amount of the surplus is substantial. The Court further recognizes the strong public policy underlying California's homestead laws and the Legislature's intent to protect a homeowner's equity in a principal residence.

Those considerations, however, cannot overcome the Legislature's specific treatment of state tax liens. Government Code section 7170, subdivision (a), expressly provides that a state tax lien attaches to a dwelling notwithstanding the prior recording of a homestead declaration. The Court is therefore required to apply the statutory scheme governing the FTB's lien even where its application results in a harsh outcome for the taxpayer.

The Court's ruling is not a determination that homestead protections are generally unavailable against creditors. Rather, it is based upon the specific statutory treatment of state tax liens, the priority of the FTB's preexisting lien, and the fact that the amount secured by that lien exceeds the entire surplus presently held by the Court.

Disposition

The Franchise Tax Board's claim is GRANTED.

Carly A. Santos's claim for \$600,000 based upon her declared homestead is DENIED.

The Clerk shall distribute the \$634,249.62 in surplus proceeds presently held by the Court to the Franchise Tax Board, subject to any applicable statutory requirements governing such distribution.

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